

**Calendar Line 6**

**Case Name:** Christina Hatzistratis v. Powerflex Solar, LLC

**Case No.:** 25CV465581

Defendant Powerflex Solar, LLC's motion to quash a subpoena duces tecum served on third party Willis Towers Watson. Notice is proper and the motion is opposed by plaintiff Christina Hatzistratis.

The court could not find a copy of the subpoena attached to any court filing. But the parties appear to agree that the subpoena seeks, "Any and all records related to Willis Towers Watson's review of defendant PowerFlex Systems LLC's ('PowerFlex') incentive structures from January 01, 2022 to May 31, 2025. This is to include all recommendations, PowerFlex documents reviewed, any and all correspondence and emails between PowerFlex and Willis Towers Watson, concerning: PowerFlex Systems, LLC." (Def. MPA, 10/8/25, at p. 5:10-13.) Defendant argues the documents are discoverable because they relate to her allegation that the commission plan was revised to deprive her of commissions she earned while working for defendant.

A subpoena for business records "shall designate the business records to be produced either by specifically describing each individual item or by reasonably particularizing each category of item." (Code Civ. Proc., § 2020.410, subd. (a).) A "party seeking to compel production of records from a nonparty must articulate specific facts justifying the discovery sought; it may not rely on mere generalities." (*Board of Registered Nursing v. Superior Court* (2021) 59 Cal.App.5th 1011, 1039.) "In assessing the party's proffered justification, courts must keep in mind the more limited scope of discovery available from nonparties." (*Ibid.*) And "[e]ven if information is otherwise discoverable, it may be protected by a constitutional or statutory privilege." (*Ibid.*) The factors discussed in *Facebook, Inc. v. Superior Court* (2020) 10 Cal.5th 329, are not relevant here. That case concerned "the enforcement of a *criminal* subpoena duces tecum issued to a third party." (*Id.* at p. 344, some italics omitted.)

The subpoena is overbroad, as drafted. It also implicates the constitutional privacy rights of defendant's other employees whose data could be included in the third party records. Plaintiff's opposition does not provide specific facts justifying the broad discovery sought from the third party entity. Nor is it clear from the record that plaintiff made adequate efforts to seek information directly from defendant before resorting to a broad third party subpoena. It is possible a more focused subpoena could be proper if (1) based on specific facts; and (2) tailored to address any third party privacy concerns (such as by seeking anonymized data). But as drafted, the subpoena must be quashed.

The parties have a number of other discovery motions on calendar. The court encourages the parties to work with a discovery facilitator through the Santa Clara County Superior Court Discovery Facilitator Program. (<https://santaclara.courts.ca.gov/divisions/civil-division/civil-adr-providers/discovery-facilitator-program>) The court will consider the parties' good faith participation (or lack thereof) in that process in determining whether to grant discovery sanctions, if those motions are not resolved informally.

The motion is GRANTED. The subpoena duces tecum served on third party Willis Towers Watson is quashed. The court will prepare the order. - 00000 -